

Defendant filed this Motion to Set Aside Judgment under Section 473.5 of the CCP, contending that she did not receive actual notice.

Plaintiff filed a judgment in the matter on 12/9/25.

Defendant timely served the Motion on Plaintiff, and the Motion is unopposed.

Background

Plaintiff filed a proof of service of process, of which the court takes judicial notice, reflecting that a process server completed personal service on 4/13/25. The person who was served identified herself as Jaclyn Ellsworth, and the service took place at the same address the Defendant used on this Motion. The server described the individual as a white woman, 35-45 and of medium height, and with dyed hair.

Defendant, in her declaration claims he was never actually served with process, though she was home at the time of the purported service.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. When service is done by a registered process server, there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

In the instant matter, the court does not have enough information, from the written submissions alone, to render a decision. Thus, the court will require an evidentiary hearing.

Disposition

Parties to appear in court for evidentiary hearing on the issue of service of process.

6. 9:00 AM CASE NUMBER: L25-02037
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. SHAUN AVANT
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT**
FILED BY: AVANT, SHAUN A
TENTATIVE RULING:

Defendant filed this Motion to Set Aside Judgment under Section 473.5 of the CCP, contending that he did not receive actual notice.

Plaintiff filed a judgment in the matter on 2/23/26.

Defendant timely served the Motion on Plaintiff, and the Motion is unopposed.

Background

Plaintiff filed a proof of service on 6/2/25, of which the court takes judicial notice, reflecting that a process server completed personal service on 5/31/25. The person who was served identified herself as Shaun A. Avant, and the service took place at the same address the Defendant used on this Motion. The server described the individual as a black male, middle aged and of medium height and weight. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant, in his declaration claims he was never actually served with process, though he was home at the time of the purported service. He also cites a discrepancy between his actual appearance and the description offered by the server.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

When service is done by a registered process server, there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

In the instant matter, the court does not have enough information, from the written submissions alone, to render a decision. Thus, the court will require an evidentiary hearing.

Disposition

Parties to appear in court for evidentiary hearing on the issue of service of process.

7. 9:00 AM CASE NUMBER: L25-05839

CASE NAME: MARINER FINANCE, LLC VS. LORETTA ROBERTSON

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL**

FILED BY: ROBERTSON, LORETTA R

TENTATIVE RULING:

Background

Counsel for Defendant has filed a Motion to be relieved as counsel, citing an inability of the client to pay counsel, as well as a breakdown in communication.